

Approved as to
form only:
D. White
Date: July 1, 2013

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR A PARCEL OF LAND BEING SITUATED IN PORTIONS OF SECTIONS 14, 15, 22, 23, 27, TOWNSHIP 13 NORTH, RANGE 67 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING, TO BE KNOWN AS THE SWAN RANCH II ANNEXATION (LOCATED NORTHWEST OF THE INTERSECTION OF CLEAR CREEK PARKWAY AND TUNDRA DRIVE)."

WHEREAS, a public hearing to receive public input and comments on the proposed annexation of the above described property was held before the governing body on April 22, 2013; and

WHEREAS, the governing body finds that the following conditions exist as set forth in Wyo. Stat. §15-1-402:

- (i) The annexation of Swan Ranch II is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town;
- (ii) The urban development of said area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town;
- (iii) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed;
- (iv) The area sought to be annexed is contiguous with the City of Cheyenne;
- (v) The City of Cheyenne does not own or operate its own electric utility, and its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to Wyo. Stat. §15-1-410;
- (vi) The City of Cheyenne, not less than twenty (20) business days prior to the public hearing required by Wyo. Stat. §15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the Swan Ranch II Annexation area a summary of the proposed annexation report as required under subsection (c) of Wyo. Stat. §15-1-402 with notice of the time, date and location of the public hearing required by Wyo. Stat. §15-1-405(a).

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Swan Ranch II Annexation area meets the requirements for annexation under Wyo. Stat. §15-1-402 (a) (i-vi) and that conditions and required procedures have been met to proceed with annexation of said land being situated in portions of Sections 14, 15, 22, 23, 27, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2013.

RICHARD L. KAYSEN, MAYOR

SEAL:
ATTEST:

CAROL INTLEKOFER, CITY CLERK